

Stereo HCJDA 38.
Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Criminal Appeal No.16787-J/2022

Muhammad Ramzan vs The State

Murder Reference No.68/2022

The State vs Muhammad Ramzan

J U D G M E N T

Date of hearing:	<u>20.05.2025</u>
Appellant by:	Mr. Shahid Azeem, Advocate.
State by:	Mr. Irfan Naeem Awan, Deputy Prosecutor General.
Complainant by:	Mr. Mehram Ali Bali, Advocate.

FAROOQ HAIDER, J.:- This single judgment will dispose of **Crl. Appeal No.16787-J/2022** filed by Muhammad Ramzan (appellant) against his “conviction & sentence” and **Murder Reference No.68/2022** sent by trial court, as both the matters have arisen out of one and the same judgment dated: 02.03.2022 passed by learned Addl. Sessions Judge (MCTC), Jhang/trial court.

2. Muhammad Ramzan (appellant) was tried in case arising out of F.I.R. No.114/2021 dated: 29.06.2021 registered under Section: 302 PPC at Police Station: Kot Shakir, District Jhang; trial court after conclusion of the trial *vide* impugned judgment dated: 02.03.2022 has convicted and sentenced the appellant as under: -

<u>Conviction</u>	<u>Sentence</u>
<u>Under Section:</u> 302 (b) PPC	“ <i>Death</i> ” (for committing <i>Qatl-e-Amd</i> of Muhammad Hussain) with payment of compensation Rs.7,00,000/- to the legal heirs of the deceased under Section: 544-A Cr.P.C. recoverable as arrears of land revenue and in default of payment of compensation amount to further undergo S.I. for six months.

3. Brief facts, as per application (Ex.PI) moved by Mazhar Abbas (complainant/PW-9) to Abdullah Saleem, S.I. of Police Station: Kot Shakir, District Jhang (PW-11) on 29.06.2021 for registration of the case are that he is a labourer; dispute of father of the complainant namely Haji Muhammad

Hussain over adjacent land to the house measuring three kanals was going on with Muhammad Ramzan son of Ahmad Bakhsh (accused), for which date 30.06.2021 was fixed in Board of Revenue Lahore; on 29.06.2021 at 09:30 a.m., father of the complainant departed from home on motorcycle, who after parking motorcycle at 18-Hazari had to proceed to Lahore while taking *Patwari Halqa* with him; on 29.06.2021 at 10:30 a.m. complainant along with Muhammad Latif and Abdul Majeed residents of the *deh* were going towards Macchiwal Adda on motorcycle in connection with personal work, when they reached near Iqbal Nagar, Muhammad Ramzan (accused) while boarding father of the complainant behind him on his motorcycle was going towards his land situated in Mauza Noon Sangran; on seeing them, they became worried that father of the complainant had to go to Lahore on *Peshi* (پیشی), upon which, they continued to follow them on their motorcycle; Muhammad Ramzan (accused) suddenly stopped his motorcycle near his sorghum crop (فصل جوار) in their eye view, picked hatchet concealed with boundary of watercourse (کھال بنہ) and inflicted blow with wrong side of the hatchet at the head of father of the complainant, who fell down; thereafter the accused inflicted successive blows with straight and blunt side of hatchet at father of the complainant; they stepped forward to rescue but the accused extended threat that they would also be dealt with the same manner; due to blows of hatchets inflicted by the accused, father of the complainant sustained severe injuries at right elbow, left hand, right shin, right ankle, near ankle of left foot and left shin; accused fled away on motorcycle while extending threats and brandishing hatchet; they attended father of the complainant and took him to RHC Kot Shakir for treatment from where he (father of the complainant) was referred to DHQ Hospital Jhang, hence they took him and proceeded towards Jhang but his condition became critical on the way, whereupon they reached in THQ Hospital Wasoo while taking father of the complainant with them but he succumbed to the injuries before attending by the doctor.

Motive behind the occurrence was that father of complainant was having dispute over land with Muhammad Ramzan (accused); prior to death, father of the complainant told the complainant that Muhammad

Ramzan (accused) met him at Adda Maachiwal and while enticing took him to his land on the pretext of compromise and committed the occurrence.

On the basis of application (Ex.PI), F.I.R. (Ex.PG) was chalked out by Muhammad Asif Javed, 1531/MHC (PW-8).

4. After completion of investigation, challan report under Section: 173 Cr.P.C. was submitted in the Court against the appellant by placing his name in column No.3 of the same; appellant was formally charge sheeted, however, he pleaded not guilty and claimed trial whereupon prosecution evidence was summoned; after recording of prosecution evidence, appellant was examined under Section: 342 Cr.P.C. but he refuted the allegations levelled against him; he opted not to appear as his own witness under Section: 340(2) Cr.P.C., however, produced Hafiz Bilal Anwar, ASI as DW-1 and attested copy of *Khasra Girdawri* (Ex.DB) in his defence; then trial court after hearing learned counsel for the parties, passed the impugned judgment, whereby appellant was convicted and sentenced as mentioned above.

5. Learned counsel for the appellant has submitted that conviction recorded against and sentence awarded to the appellant through impugned judgment are against the 'law and facts' and result of non-reading/misreading of evidence, therefore, same are not sustainable in the eyes of law. Learned counsel for the appellant finally prayed for acquittal of the appellant.

6. Learned counsel for the complainant has submitted that Haji Muhammad Hussain (now deceased of the case) told the complainant before his expiry/death that appellant on the pretext of compromise took him to the place of occurrence and thereafter murdered him and prayed for treating the same as well as contents of injury statement (Ex.PH) as "dying declaration"; further submitted that prosecution has proved its case and appeal is liable to be dismissed.

7. Learned Deputy Prosecutor General has supported the impugned judgment and prayed for dismissal of the appeal.

8. **Arguments heard. Record perused.**

9. It has been noticed that as per case of prosecution, occurrence took place at 10:30 a.m. on 29.06.2021 whereas it was reported to the police

through application for registration of the case (Ex.PI) by Mazhar Abbas (complainant/PW-9), which he produced before Abdullah Saleem, S.I. (PW-11) at THQ Hospital, Wasoo at 05:50 p.m. on 29.06.2021, which was sent to the Police Station for registration of the case and on the basis of said application, FIR (Ex.PG) was recorded at 06:50 p.m. on 29.06.2021 at Police Station: Kot Shakir, District Jhang.

In the application for registration of the case (Ex.PI), it has been mentioned by the complainant that Haji Muhammad Hussain (father of the complainant/now deceased of the case) along with complainant and his companions reached in THQ Hospital, Wasoo, he (Haji Muhammad Hussain) succumbed to the injuries and died before examining by the doctor. It is relevant to mention here that he (complainant) while appearing as PW-9 stated that they reached at THQ Hospital at 1:00/1:15 p.m. and relevant portion of statement of Mazhar Abbas (complainant/ PW-9) in this regard is hereby reproduced as follows:-

“We reached to THQ hospital 18-Hazari at 1:00/1:15 P.M.”

Similarly, statement of Abdul Majeed (PW-10) in this regard is also produced as under:-

“We reached to THQ hospital Waso/18-Hazari at about 1:15 P.M.”

So, as per these statements, Haji Muhammad Hussain (now deceased of the case) died before 1:15 p.m. and complainant was then free to go to the Police Station and get registered the case but he did not do so rather submitted application for registration of the case (Ex.PI) to Abdullah Saleem, S.I. (PW-11) at THQ Hospital, Wasoo at 05:50 p.m. on 29.06.2021, and no plausible, convincing and acceptable reason to explain/cover said delay has been offered/brought on the record by the prosecution; it is of vital importance to mention here that as per postmortem examination report as well as statement of Dr. Waseem Haider (PW-5, who conducted autopsy of the deceased), Haji Muhammad Hussain died almost immediately after receiving the injuries and relevant portion of the statement of PW-5 is hereby reproduced:-

“Probable duration between injuries and death was almost immediate---.”

Neither said portion of postmortem examination report was challenged during investigation nor during trial of the case by the prosecution. So as per ocular version, Haji Muhammad Hussain received injuries at about 10:30 a.m. and as per medical evidence, he almost immediately died after receiving the injuries, meaning thereby that he died at the spot, and the distance between Police Station and the place of occurrence has been mentioned as 13-Kilometers in Column No.4 of the FIR whereas 11/12 Kilometers, coverable within 15/20 minutes, has been mentioned by Mazhar Abbas (complainant) while recording his statement before the court as PW-9; relevant portion of his statement in this regard is hereby reproduced as follows:-

“The inter-se distance between Police Station and place of occurrence is about 11/12 K.Ms, which can be covered on vehicle within 15/20 minutes.”

This state of affairs also reflects that occurrence was not promptly reported to the police. Therefore, case was not promptly registered after the occurrence, which fact reflects that none of the cited witnesses including the complainant was present at the place of occurrence at relevant time of occurrence and time was consumed for procuring, inducing and engaging the witnesses including the complainant; then tailoring story for the case of prosecution and registering the case in its present form after much delay and in above scenario, First Information Report (crime report), which is cornerstone of the case of the prosecution, has lost its relevance/significance, and cannot provide any support to the case of prosecution and superstructure i.e. case of prosecution raised on the basis of such sort of FIR is bound to fall and in this regard, cases of “HAROON SHAFIQUE versus The STATE and others”(2018 SCMR 2118), “MUHAMMAD RAFIQUE alias FEEQA versus The STATE” (2019 SCMR 1068), “SUFYAN NAWAZ and another versus The STATE and others” (2020 SCMR 192) and “MUHAMMAD ADNAN and another versus The STATE and others” (2021 SCMR 16) can be safely referred.

Ocular account produced by the prosecution comprises of statements of Mazhar Abbas (complainant/ PW-9) and Abdul Majeed (PW-10). As per own case of prosecution, mentioned in the application for

registration of the case (Exh.PI), occurrence took place in the area of *Noon Sangra* whereas Mazhar Abbas (complainant/PW-9) and Abdul Majeed (PW-10) were residents of village Sial, therefore, they both were “chance witnesses” and were thus required to establish valid, cogent, plausible and acceptable reason to prove their presence at the “time & place” of occurrence and relevant portion of statement of Mazhar Abbas (complainant/PW-9) is reproduced as under:-

“My residence is at the distance of 3 K.Ms via road and 1.5 K.M through fields from the place of occurrence. The house of Muhammad Latif Pw is at the distance of 1 K.M from the place of occurrence and not 2 K.Ms as suggested. The house of Abdul Majeed Pw is at the distance of 3 K.Ms by road from the place of occurrence. The residence of Muhammad Waris Pw is at the distance of 4 K.Ms from the place of occurrence. The houses of Pws Muhammad Waseem and Jind Wadda are at the distance of about 3 K.Ms from the place of occurrence. The house of Pw Muhammad Ashraf is situated at the distance of 3 K.Ms from place of occurrence.”

It is very much important to mention here that complainant was son of the deceased whereas Muhammad Latif and Abdul Majeed (cited eye witnesses) were his maternal cousins and relevant portion of statement of Mazhar Abbas (complainant/PW-9) is hereby reproduced as under:-

“Muhammad Hussain deceased was my father. PWs Muhammad Latif, Muhammad Waris and Abdul Majeed are my maternal cousins.”

Mazhar Abbas (complainant), Abdul Majeed, Muhammad Latif (cited eye witnesses) and Haji Muhammad Hussain (now deceased of the case) were four in number at the relevant time, at the place of occurrence whereas as per own case of prosecution, appellant was all alone and not equipped with any sophisticated firearm weapon rather as per allegation, he stopped the motorcycle, took out hatchet from the water channel (کھال بنہ), attacked Haji Muhammad Hussain (father of the complainant/now deceased of the case), gave several blows of hatchet to him. If such was the state of affairs, then question arises that when there was enmity existing regarding land between Haji Muhammad Hussain (deceased) and Muhammad Ramzan (appellant), then firstly why complainant went with the appellant and secondly when complainant and cited eye witnesses saw Haji Muhammad Hussain (father of the complainant) going with Muhammad Ramzan (appellant) on the motorcycle of Muhammad Ramzan, then why they did not immediately stop them and inquired about reason from Haji Muhammad Hussain for going

with the appellant? Relevant portion of statement of Mazhar Abbas (complainant/PW-9) in this regard is reproduced as under:-

“We did not attempt to stop the accused and deceased from Iqbal Nagar to place of occurrence as, to why they were going together being opponents.”

and furthermore, when appellant after de-boarding from the motorcycle went to water channel (کھال بنہ), took out hatchet from there, attacked Haji Muhammad Hussain; gave several blows of hatchet to him and as per statement of Dr. Waseem Haider (PW-5), who conducted postmortem examination over the dead body of the deceased of the case, thirteen injuries were noted on the body of the deceased including injuries No.12 and 13, which were multiple contusion marks in the area of 12cm x 5 cm and 15cm x 6 cm, respectively, then why complainant and cited eye witnesses (mentioned above) did not intervene, snatch hatchet and apprehend the appellant? Common prudent man does not accept that if son of the person is present at the place of occurrence along with his two maternal cousins, then single assailant can give several blows with hatchet to the person, and said son along with his maternal cousins will not intervene to save his father, snatch hatchet and apprehend the appellant.

In this case, complainant and cited eye witnesses did not attempt to apprehend the accused even from backside and relevant portion of the statement of Mazhar Abbas (complainant/PW-9) in this regard is hereby reproduced as under:-

“We did not attempt to apprehend the accused from his backside.”

They even did not try to immediately shift the injured (now deceased of the case) from the place of occurrence and relevant portion of the statement of Abdul Majeed (PW-10) in this regard is reproduced as under:-

“I remained at the place of occurrence for about 45 minutes. The deceased in injured condition was shifted from the place of occurrence after about 45 minutes.”

So, aforementioned conduct of the complainant being son of the deceased as well as Abdul Majeed and Muhammad Latif (cited eye witnesses), who were maternal cousins of the complainant, was unnatural and not appealing to common prudent man and reflects that they were not present at the “time & place” of occurrence; in this regard, guidance has been sought from the cases of **“REHMAT ULLAH versus MUHAMMAD IQBAL and**

others”(2006 SCMR 1517), “LIAQUAT ALI versus THE STATE”(2008 SCMR 95), “SHAHID ABBAS versus SHAHBAZ and others” (2009 SCMR 237), “ZAFAR versus The STATE and others”(2018 SCMR 326), and “ZAFAR ALI ABBASI and another versus ZAFAR ALI ABBASI and others”(2024 SCMR 1773).

Though it was claim of the complainant in application for registration of the case (Exh.PI) that he along with cited eye witnesses was going for some personal work but nature and detail of personal work was not disclosed/mentioned by them; relevant portion of statement of Mazhar Abbas (complainant/PW-9) in this regard is hereby reproduced as under:-

“I had not got recorded the detail of our work in my application Exh.P-I.”

Therefore, aforementioned reason claimed by the complainant and other cited eyewitnesses regarding their presence/availability at the relevant “time & place” of occurrence could not be established.

It is also noteworthy here that complainant claimed that when they attended his father, their clothes became stained with blood but same were not handed over to the Investigating Officer of the case; relevant portion of the statement of Mazhar Abbas (complainant/PW-9) in this regard reads as follows:-

“When we attended my father, our clothes stained with blood. The clothes were not handed over to I.O.”

By now it is well settled that if bloodstained clothes of the complainant and cited eye witnesses have been produced during investigation, same provide strong corroboration to the ocular account regarding presence of the eye witnesses at the “time & place” of occurrence; guidance in this regard has been sought from the cases of “Mst. SUGHRA BEGUM and another versus QAISER PERVEZ and others” (2015 SCMR 1142), “NADEEM alias KALA versus The STATE and others” (2018 SCMR 153) and “Mst. MIR ZALAI versus GHAZI KHAN AND OTHERS” (2020 SCMR 319).

In above scenario, evidence of both cited witnesses i.e. Mazhar Abbas (complainant/PW-9) and Abdul Majeed (PW-10), who could not establish any valid reason/cause regarding their stated presence at the stated

time, at the place of occurrence, is “**suspect**” evidence and cannot be accepted without pinch of salt; guidance in this regard has been sought from the case of “**Mst. SUGHRA BEGUM and another vs. QAISER PERVEZ and others**” (SUPRA) and relevant portion from paragraph No.14 of said case law is hereby reproduced: -

“14. A chance witness, in legal parlance is the one who claims that he was present on the crime spot at the fateful time, albeit, his presence there was a sheer chance as in the ordinary course of business, place of residence and normal course of events, he was not supposed to be present on the spot but at a place where he resides, carries on business or runs day to day life affairs. It is in this context that the testimony of chance witness, ordinarily, is not accepted unless justifiable reasons are shown to establish his presence at the crime scene at the relevant time. In normal course, the presumption under the law would operate about his absence from the crime spot. True that in rare cases, the testimony of chance witness may be relied upon, provided some convincing explanations appealing to prudent mind for his presence on the crime spot are put forth, when the occurrence took place otherwise, his testimony would fall within the category of suspect evidence and cannot be accepted without a pinch of salt.”

Further guidance on the subject has been sought from the case of “**MUHAMMAD ASHRAF alias ACCHU versus The STATE**” (2019 SCMR 652), “**Mst. MIR and another versus The STATE**” (2020 SCMR 1850) and “**SARFRAZ and another versus The STATE**” (2023 SCMR 670). So, ocular account produced by the prosecution is not confidence inspiring/reliable, hence discarded.

Now coming to the contention of learned counsel for the complainant that statement of complainant mentioned in application (Ex.PI) that his deceased father told him that he was brought on pretext of compromise by appellant, and then occurrence was committed and injury statement (Ex.PH) may be treated as “Dying Declaration” is concerned, it is relevant to mention here that when as per own case of prosecution, there was dispute between father of the complainant (now deceased of the case) and appellant, then there was no occasion/fun for going of Haji Muhammad Hussain (now deceased of the case) with appellant on his motorcycle and reason offered by the complainant in application for registration of the case (Ex.PI) that his father told him that he was taken by the appellant on the pretext of compromise does not seem plausible because if compromise was

to be made, then it was appropriate to go to Board of Revenue, Lahore for recording the factum of compromise as case was pending there or to go to the village for compromise but no reason appealing to a common prudent man was brought on the record to show that for the purpose of compromise, Haji Muhammad Hussain (father of the complainant) went with appellant towards and at the place of occurrence. Therefore, this claim of the complainant appears to be afterthought and fabricated just to give colour to the prosecution version, thus repelled.

So far as coming of Haji Muhammad Hussain in the Police Station and preparation of his injury statement (Ex.PH) are concerned, suffice it to say that complainant neither claimed in application for registration of the case (Ex.PI) nor during his statement before the court that he alongwith his father namely Haji Muhammad Hussain or his father went to the Police Station, got prepared any injury statement there rather Mazhar Abbas (complainant/PW-9) clearly stated during his statement before the court that when accused fled away then they shifted Haji Muhammad Hussain to R.H.C Kot Shakir wherefrom he was referred to DHQ Hospital, Jhang, however, on the way, his condition became critical and he was taken to THQ hospital, Wasoo where he succumbed to the injuries before attending by doctor; relevant portion of his statement is reproduced:-

“and the accused while brandishing his hatchet fled away with motorcycle. We attended father, who was shifted to RHC Kot Shakir hospital by us, wherefrom the injured was referred to D.H.Q Hospital Jhang. On the way, the condition of the injured became critical and he was taken to THQ hospital Waso, where he succumbed to the injuries before attending by doctor.”

Complainant further stated that he remained with the dead body till submission of application to the police and did not go anywhere; relevant portion of statement of Mazhar Abbas (complainant/PW-9) in this regard is also reproduced as under:-

“I remained with the dead body till submission of application to police and did not go anywhere else.”

Said injury statement (Ex.PH) does not contain any signature or stamp of the doctor/Medical Officer, so much so that issuance of any MLC or OPD tickets or even referring of injured to DHQ hospital is not mentioned in this injury statement (Exh.PH).

So, preparation of injury statement (Ex.PH) appears to be a dubious document fabricated at belated stage for strengthening the case of prosecution against the facts. Even otherwise, perusal of injury statement (Ex.PH) reveals that it was prepared at 11:50 a.m. with reference to Rapt No.6 dated: 29.06.2021 but said Rapt has not been brought on the record by the prosecution, which reflects that either Rapt No.6 was not pertaining to this case and claim of the prosecution was pseudo in this regard or it was not going to support the claim of prosecution, therefore, not produced, and article 129(g) of the Qanoon-e-Shahadat Order, 1984, can be advantageously referred on the subject and when as per said document (Exh.PH), information regarding the occurrence was received at Police Station at 11:50 a.m. vide Rapt No.6, then why FIR was not registered then and there at 11:50 a.m. in the light of said Rapt and it goes without saying that FIR (Ex.PG) was recorded at 06:50 p.m. vide Rapt No.13 on the application of the complainant (Ex.PI) received at 05:50 p.m. at THQ Wasoo and it is nowhere mentioned in the “Karvi Police” written on the FIR that earlier Rapt No.6 was recorded regarding this occurrence or after preparing injury statement, injured was referred for medicolegal examination. Furthermore, injury statement is meant only for mentioning description of injuries and brief report of Police Officer qua manner in which injuries are supposed to have been caused or poison suspected to have been used (as the case may be) as provided in 25.39 of the Police Rules, 1934 and it is clarified that injury statement is not prepared for the purpose of recording statement of injured/complainant qua detail of occurrence like recording of information under Section: 154 Cr.P.C.

It goes without saying that detail of occurrence is incorporated in First Information Report Register whereas its substance in Daily Diary of the Police Station and it is trite law that when law prescribes a thing to be done in a particular manner, it should be done in that manner or not at all and in this regard famous Latin maxim “*A communi observantia non est recedendum*” can be safely referred. Therefore, when all the above discussed factors are taken into consideration in totality then injury statement (Ex.PH) and any purported statement of the injured mentioned in it cannot be treated as “Dying Declaration” in the peculiar facts and circumstances of the case, hence,

contention of learned counsel for the complainant in this regard is without force and thus repelled.

So far as medical evidence is concerned, as per statement of Dr. Waseem Haider (PW-5), thirteen injuries were noted on the body of the deceased including stab wounds, contusion marks and lacerated wounds and it is noteworthy here that as per ocular account, hatchet blows from wrong side and straight side were given by the appellant on different parts of the body of the deceased. In such circumstances, availability of stabbed wounds on the body of the deceased raises question mark; relevant portion of the statement of Dr. Waseem Haider (PW-5) reads as follows:-

“It is correct that stab wound, lacerated wound and contusion wounds are caused with different nature of weapons. Pw explained that the contusion and laceration can be caused with blunt object.”

It goes without saying that as per own case of prosecution, Haji Muhammad Hussain in injured condition was referred to DHQ Hospital, Jhang but Dr. Waseem Haider (PW-5) stated in categorical terms that he did not receive any referral slip of the deceased and relevant portion of his statement in this regard is hereby reproduced as under:-

“I did not receive any referral slip of deceased Muhammad Hussain.”

Hence, ocular account has not been supported/confirmed in *stricto-sensu* by the medical evidence to the extent of availability of stabbed wounds. Though Out-Door Patient's Tickets of Haji Muhammad Hussain issued by RHC, Kot Shakir (available at Pages No.94 and 95 of the Paper Book as Ex.PA and Ex.PA/1) have been brought on the record yet it is worth mentioning here that neither time of arrival of Haji Muhammad Hussain in RHC, Kot Shakir nor who brought Haji Muhammad Hussain to the R.HC has been mentioned in the same; signature or thumb-impression of Haji Muhammad Hussain is not available in Exh.PA and as Exh.PA/1; name or the signature of the complainant or any other cited eye witness or police employee has not been mentioned on the same. Emergency Register of RHC, Kot Shakir has not been produced regarding arrival of Haji Muhammad Hussain over there. So much so that any medicolegal examination certificate issued by RHC, Kot Shakir has not been brought on the record and though Dr. Hafiz Muhammad Huzaifa (PW-1) was produced regarding Ex.PA and Ex.PA/1 yet he stated during cross-examination that both said documents did not bear the time of

arrival and departure of patient and it was no where mentioned in both said documents that condition of the patient was serious; in this regard, relevant portions of his statement are reproduced as follows:-

“The Exh.P-A & Exh.P-A/1 do not bear the time of arrival and departure of patient.”

“There is no mention in Ex.P-A/ and Exh.P-A/1 that condition of the patient was serious.”

Dr. Hafiz Muhammad Huzaifa (PW-1) also clearly deposed that he did not join investigation of this case; relevant portion of his statement in this regard is hereby reproduced as under:-

“I did not join investigation of this case.”

It is also worth mentioning here that genuineness of both said documents i.e. Out-Door Patient's Tickets of Haji Muhammad Hussain issued by RHC, Kot Shakir (Ex.PA and Ex.PA/1) was not verified by the Investigating Officer during investigation of the case; in this regard, relevant portion of the statement of Abdullah Saleem, S.I./Investigating Officer (PW-11) is reproduced as under:-

“The above said slips were provided by the complainant. I did not investigate about genuineness of above said outdoor slips.”

Similarly, though copy of a document statedly issued by THQ Hospital 18-Hazari, District Jhang is available at Page No.110 of the Paper Book as Ex.PH yet it is relevant to mention that perusal of record sent by the trial court reveals that said document was not marked as Ex.PH and same has been inadvertently marked as Ex.PH in the Paper-Book which is against the record, and even otherwise on the Court's query, learned Deputy Prosecutor General and learned counsel for the complainant remained unable to refer any witness in whose statement, said document has been brought on the record by the prosecution; scribe of said document has not been produced during trial of the case, so said document was neither brought on the record according to law nor exhibited/proved.

Even otherwise, it is trite law that medical evidence is mere supportive/confirmatory type of evidence; it can tell about locale, nature, magnitude of injury, duration of the injury and kind of weapon used for causing injury but it cannot tell about identity of the assailant who caused the injury; therefore, same cannot provide any corroboration to the case of prosecution

in peculiar facts and circumstances of the case and in this regard guidance has been sought from the case of “**MUHAMMAD RAMZAN versus The State**” (2025 SCMR 762), relevant portion from the case law is as under:-

“It is by now well settled that medical evidence is a type of supporting evidence, which may confirm the prosecution version with regard to receipt of injury, nature of the injury, kind of weapon used in the occurrence but it would not identify the assailant.”

As far as recovery of bloodstained hatchet from the appellant is concerned, suffice it to say that as per own case of prosecution, same was recovered on 19th day of the occurrence and relevant portion of the statement of Abdullah Saleem, S.I./Investigating Officer (PW-11) in this regard is hereby reproduced as under:-

“Recoveries were effected after 19 days of the occurrence.”

So, appellant was having sufficient time after the occurrence to wash and destroy said hatchet. It was even otherwise not got recovered from exclusive possession of the appellant rather as per case of prosecution, at that time, one person with the name of Noor Sultan was there and in this regard relevant portion of the statement of Abdullah Saleem, S.I./ Investigating Officer (PW-11) is hereby reproduced as follows:-

“The door of house of recovery was knocked which was opened by a man. Name of said person was Noor Sultan who was not joined in recovery proceedings. Pw volunteered that said Noor Sultan is relative of the accused.”

Even any request for DNA/grouping of blood of the deceased stained with hatchet and other articles was not sent by the prosecution; relevant portion of the statement of Abdullah Saleem, S.I./Investigating Officer (PW-11) is hereby reproduced as under:-

“I did not send request for DNA/grouping of blood of deceased stained with hatchet and his other articles.”

Inspite of the fact that bloodstained soil was taken from the place of occurrence and axe as well as swabs taken from the blade were available with Punjab Forensic Science Agency at the time of comparison, but any report regarding matching of blood group is not available on the record; in this regard, case of “**MUHAMMAD ASIF versus The STATE**” (2017 SCMR 486) can be safely referred; relevant portion from said case law is hereby reproduced below: -

“18. Before parting with this judgment, we deem it essential to point out that, mere sending the crime weapons, blood stained to the chemical examiner and serologist would not serve the purpose of the prosecution nor it will provide any evidence to inter link different articles.

19. We have noticed that the Punjab Police invariably indulge in such a practice which is highly improper because unless the blood stained earth or cotton and blood stained clothes of the victim are not sent with the same for opinion of serologist to the effect that it was human blood on the crime weapons and was of the same group which was available on the clothes of the victim and the blood stained earth/cotton, such inconclusive opinion cannot be used as a piece of corroboratory evidence. Therefore, copy of this judgment be sent to the Prosecutor General, Punjab, and Chief Incharge of Investigation, Punjab Provincial Police to issue instructions to the investigating agencies in this regard.”

Guidance in this regard has also been sought from the case of “**KHALID JAVED and another versus THE STATE**” (2003 SCMR 1419) and relevant portion from said case law is hereby reproduced below: -

“Thus its result would be that on discarding the said portion of the statement incorporated in the recovery memos, the prosecution is left only with the recoveries of dagger and Churri Article P.7 and P-19 and now the burden is upon it to prove through other evidence that these articles being crime weapons were used for the murder of deceased. This could not be done without matching the stains of blood allegedly available on these articles. One may pose a question to himself as to that how would it be possible for the prosecution to match the blood group of deceased with the blood available on these articles because these articles were recovered on 28-2-1993 and 3-3-1993 respectively from appellants whereas deceased was buried on 10th February, 1993. The answer to this query is that at the time of post-mortem the concerned Doctor should have got determined her blood group from Chemicals Analyser for future use during investigation and trial of the case. Such practice can be adopted invariably in all the criminal cases.”

therefore, recovery of hatchet is of no help to the case of prosecution.

As far as motive for the occurrence is concerned, Mazhar Abbas (complainant/PW-9) in the application for registration of the case (Ex.PI) has mentioned that dispute over land of father of the complainant was going on with Muhammad Ramzan (appellant), who under the pretext of compromise, took the deceased at his land and committed the occurrence. It is worth mentioning here that dispute between the parties was of civil nature and pending before the Member Board of Revenue, Punjab, Lahore in the form of R.O.R. No.1592/2019 since 2019, which was filed against order dated: 23.05.2018 passed by Assistant Commissioner {copy of R.O.R. No.1592/2019 (Ex.P-6/1-8) is available at pages No.121 to 128 of the Paper

Book}, therefore, it was not a fresh litigation/gruge because occurrence took place on 29.06.2021 and neither any quarrel/fight between the parties during their appearance before the courts took place nor any criminal case was registered earlier in this regard; relevant portion of the statement of Abdullah Saleem, S.I./Investigating Officer (PW-11) in this regard is hereby reproduced as under:-

“The litigation between the deceased and accused was of civil nature. It did not come to my knowledge during investigation that any quarrel & fight took place between the parties during their appearance in the courts, neither any criminal case was registered in this regard.”

so on the one hand, said motive is old, feeble and weak whereas on the other hand, immediate cause of occurrence i.e. what happened now which compelled the accused to commit the murder of Haji Muhammad Hussain could not be established. Even otherwise, motive is a double edged weapon, it cuts both the ways, it can also be a reason for false implication; furthermore, when substantive evidence has been discarded, then motive loses its significance and becomes immaterial for conviction.

10. It is well established principle of law that single dent/circumstance in case of prosecution is sufficient for acquittal; in this regard, case of “**ABDUL GHAFUOR versus The STATE**” (2022 S C M R 1527) can be safely referred.

11. In the instant case after examining the prosecution case from all corners and evaluating it on the touchstone of principle of “safe administration of criminal justice”, this Court has arrived at the conclusion that prosecution has miserably failed to establish its case against the appellant beyond shadow of doubt. As prosecution has failed to prove its case against the appellant, therefore, there is no need to discuss defence version.

12. Resultantly, instant appeal bearing **Crl. Appeal No.16787-J/2022**, filed by Muhammad Ramzan (appellant), is allowed; conviction recorded and sentence awarded to the appellant through impugned judgment dated: 02.03.2022 is hereby set aside. Appellant is acquitted of the charge, he be released from jail forthwith, if not required in any other case.

Murder Reference No.68 of 2022 is answered in **negative** and death sentence awarded to Muhammad Ramzan is not confirmed.

(ALI ZIA BAJWA)
JUDGE

(FAROOQ HAIDER)
JUDGE

APPROVED FOR REPORTING

(ALI ZIA BAJWA)
JUDGE

(FAROOQ HAIDER)
JUDGE

This judgment has been dictated and pronounced on 20.05.2025 whereas after preparation, signed on 29.05.2025.

Asif